

HOUSE No. 4835

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, December 22, 2025.

The committee on Housing, to whom was referred the petition (accompanied by bill, House, No. 1476) of Tackey Chan and others for legislation relative to pet ownership for residents of state-aided public housing for the elderly, reports recommending that the accompanying bill (House, No. 4835) ought to pass.

For the committee,

RICHARD M. HAGGERTY.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to codify pet-friendly elderly housing policies and ensure pet parity across housing authorities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 23B of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by inserting after section 5B the following new section:-

3 Section 5C. The executive office of housing and livable communities is hereby
4 authorized, empowered and directed to continue to conduct and maintain a program of pet
5 ownership for residents of state-aided public housing for the elderly, and to institute and
6 maintain a program of pet ownership for residents of state-aided public housing for residents
7 who are able to reasonably care for the pet, in accordance with all applicable public health,
8 animal control, and animal-cruelty laws and regulations and the reasonable requirements of the
9 state-aided public housing facility.

10 For the purposes of this section a pet shall mean any domesticated animal that is
11 commonly kept in a household.

Reasonable requirements may include, but are not limited to requiring a pet deposit, that shall be no greater than the lesser of one hundred-sixty dollars or one month's rent; limitations on the number of pets in a unit, based on unit size; restrictions or prohibitions based on size and type of building, project, or unit; requiring pet owners to have their pets spayed or neutered; having an adequate care plan for the pet, including veterinarian care, and emergency contacts that can care for the pet in the event the tenant experiences a medical emergency; registering the pet with the state-aided public housing facility; and anything else set forth by the executive office of housing and livable communities.

A state-aided public housing facility shall not have an outright prohibition on the keeping of dogs nor discriminate solely based on the dog's breed, size, weight or appearance; require pet declawing, or evict a tenant based solely on the presence of a pet, where such tenant has otherwise adhered to the requirements and policies set forth by the state-aided public housing facility.

Nothing in this section shall require that a state-aided housing facility allow for the ownership of a dog who has been declared dangerous by a municipality under section 157 of Chapter 140.

The department shall update regulations relating to pet ownership in state-aided housing. These regulations shall include, but shall not be limited to:

(i) a standard process for a resident to apply for and register an animal in the pet program, which shall include a standard process for individual review of such registrations, and a process for denial and appeal of any such denial.

(ii) the development of pet policies suitable for various types of housing catering to various residents, such as an apartment complex, single-family and multi-family home, and congregate living;

(iii) the provision of emergency veterinary and temporary care contacts for the pet;

(iv) minimum health, safety, and sanitation standards relating to flea and tick control, pet waste removal, and noxious odor management;

(v) the procedure for enforcement and due process, including the establishment of a pet committee and pet grievance panel; and

(vi) anything else the executive office of housing and livable communities deems necessary for the implementation of pet policies.

Any housing authority that violates this section shall be subject to the penalty established in Section 5C of Chapter 23B.

SECTION 2. There shall be an advisory group that consists of the following members: the secretary of the executive office of housing and livable communities or a designee; a representative of a local housing authority; two representative of a local tenant organization in state-aided public housing; a representative of the Massachusetts commission against discrimination; a representative of a tenants' rights organization; an animal control officer; a representative of the Massachusetts Society for the Prevention of Cruelty to Animals; and a representative of the Animal Rescue League of Boston. The members of the advisory group shall appoint a chair.

The advisory group shall assist with:

54 (i) updating regulations relating to pet ownership;

55 (ii) the development of pet policies suitable for various types of housing catering to
56 various residents, including an apartment complex, single-family and multi-family home, and
57 congregate living;

58 (iii) the creation of guidance for the establishment and operation of a pet committee and a
59 pet grievance panel at housing authorities;

60 (iv) the determination of any data that should be collected by the executive office of
61 housing and livable communities from housing authorities and participating residents;

62 (iv) the aggregation of existing pet adoption, ownership, and care resources for housing
63 authorities and participating residents; and

64 (v) the proposal of any legislative recommendations related to pets in state-aided public
65 housing, to be submitted to the clerks of the senate and the house of representatives and the
66 chairs of the joint committee on housing.